

**MINUTES
ANNUAL GENERAL MEETING**

CARLETON CONDOMINIUM CORPORATION NO. 276

**Tuesday, July 13, 2010
(Greenboro Community Centre, 363 Lorry Greenburg Drive Ottawa, ON)**

Present: Directors: Carol Wu, President
Arthur Etkin, Vice President
Mitch Savoie, Treasurer / Secretary

Property Manager: Stefan Novak

Recording Secretary: Heather Clark

Call to Order

C. Wu, President called the meeting to order at 7:00 p.m.

1. Introduction of the Head Table

The President, C. Wu introduced the Head Table consisting of the Board of Directors, Property Manager, Heather Clark, Recording Secretary, and arriving late the Auditor Mr. Gilles Charron.

2. Proof of Notice of Meeting

C. Wu read the notice of the meeting indicating that proper notice was given to conduct the Annual General Meeting.

CARRIED

3. Confirmation of Quorum

The scrutineers verified that 28 owners in total were represented with 11 in person and 17 by proxy. Therefore after establishing a quorum, the meeting of the owners of Ottawa-Carleton Condominium Corporation No. 276 was duly constituted to continue the business of the Annual General Meeting.

4. Adoption of Minutes of the Annual General Meeting of May 19, 2009

Ms. Nina Muraviova, #494 Sandhamn Private motioned and Ms. Betty Flack, #453 Sandhamn Private seconded to approve and accept the minutes from the Annual General Meeting held on May 19, 2009.

There was no discussion with regard to the minutes and therefore all homeowners present, agreed to accept the motion and carried the minutes unanimously.

CARRIED

5. Auditor's Report

The President turned the meeting over to the Corporation's Auditor, Gilles Charron, who reviewed the financial statements for the year ending December 31, 2009. Mr. Charron presented the Auditor's Report, Balance Sheet, Statement of Operating Fund and Fund Balance, Statement of Reserve Fund and Fund Balance, Statement of Cash Flows and Notes to the Financial Statements.

The Auditor received a question regarding the amount of \$16,000 for accounts receivable. Mr. Charron noted that this perhaps was a result of the special assessment, but he would review the accounts and provide the specific information to the Board of Directors. The President noted that this amount was made up of owners' arrears and the special assessment. She noted that there were many owners that were in arrears with their condominium fees as well as with last year's special assessment.

It was noted that a number of mail-outs this past year increased the office expenses. The Board of Directors was attempting to use the website, but there were certain documents that needed to be mailed in hard copy to each homeowner.

Mr. Guy Gagnon, #432 Sandhamn Private thanked the Auditor and noted that this was a much better document than last year's and it really showed that the condominium was on the right track and a lot of work had been completed toward our financial situation.

6. Appointment of Auditor

Mr. Guy Gagnon, #432 Sandhamn Private motioned and Ms. Nina Muraviova, #494 Sandhamn Private seconded to receive the Auditors report. There were no homeowners opposed to the motion, no abstentions; the motion was therefore carried unanimously.

CARRIED

The President, Ms. Carol Wu noted that as there were some issues this past year with the present Auditor and a number of things needed to be adjusted in the audit, the Board of Directors had discussed retaining Nicholas Ralph Chartered Accountants as the condominium's auditor for next year. As well, according to Best Practices, auditors should be changed every 5-7 years; our current auditor had been the only auditor for CCC 276 since the inception of CCC 276.

Ms. Gloria Anderson, #497 Sandhamn Private motioned and Ms. Betty Flack, #453 Sandhamn Private seconded to appoint Nicholas Ralph Chartered Accountants as Auditor for the fiscal year January 1, 2010 to December 31, 2010. There were no homeowners opposed to the motion, no abstentions; the motion was therefore carried unanimously.

CARRIED

7. President's Report

Ms. C. Wu presented her President's Report. She read and highlighted the following:

- The Board had a busy year and we kept all owners updated through short *Board Updates Newsletters* throughout the year; this *President's Report* will highlight on some of the major activities that had been done.
- In November, the Board put together the 2010 budget in collaboration with our Property Manager (Stefan Novak) and was able to make some budget cuts to save enough monies for the reserve fund appropriation without the need for a special assessment of \$1000 for 2010. The Board was able to do this by making cuts to some contracts. We had cancelled the services of the response security patrol which saved almost \$5000 as well as reduced our landscaping costs to \$13,000 from \$25,000. For our infrastructure, paving that had been scheduled for 2010 and 2011 was put off to build up the Reserve Fund but we would continue with patching the asphalt where necessary for health and safety reasons. Please be aware that the HST, implemented on July 1st, had increased all of our service contract costs by 8%.
- A walk-around inspection was completed in June 2009; there hadn't been one done in the previous 3 years. We also completed another walk-around inspection in April 2010. There was a major improvement of satellite dish infractions. Last year we had noticed numerous satellite dishes installed in the front, which was against our *Rules and Regulations*, but they had been removed from the front roof, front porch roof, etc. but there were still many satellite dishes installed in prohibited places in the back. An issue that was brought up at the 2009 AGM was the bad shape of some patio doors. An inspection regarding patio doors was done last August and those that were beyond repair were scheduled to have their doors replaced; we also noticed more patio doors that needed replacing during our April 2010 walk-around inspection that were beyond repair. These doors had sagging frames and could not be shut and/or the frame was rotted out underneath. In total, we had to have 28 patio doors replaced. Due to safety reasons, we had no choice but to replace them. The consolation was that the patio doors were ordered before the implementation of the HST and we were able to save about \$4,000.
- Ms. Barbara Corbeil, #478 Sandhamn Private noted that her patio door will eventually need to be repaired, but understood that the worst ones were done as a priority this year. The Board of Directors will take note of this.
- The other issue that we had noticed during the walk-around inspection was blocked window wells for those that have them as well as missing eavestroughs – both of these issues are the owners responsibility. There were also issues with having trees removed because certain species of trees have long roots and causes damage to foundations, like the 'corkscrew willow' tree. We had to remove 1 of these trees last year. It was advised that *corkscrew willow* trees should not be planted in any backyards; their long roots could cause major damage to the foundations.
- At the end of July 2009, there was some major flooding in Unit 411 due to a broken backwater valve under the concrete floor and this had to be repaired. As well, to prevent more flooding, the storm drain basins, sewer pipes and manholes got flushed. The last time the street got flushed was in 1995-96.
- The Board drafted a new policy for clotheslines because of the new provincial regulation overruled any condo regulation banning clotheslines. At the same time, the Rules and

Regulations document was also updated in January 2010. This document as well as other resources could be obtained from the website www.condogroup.ca. This website's a new service initiated by our Property Manager. If you log in as an existing owner you could view and obtain all the Newsletters, documents, etc. pertaining to our condominium. If you didn't have a computer, you could contact our Property Manager for hardcopies.

- It was advised that along with the Property Manager, the Board members also now had the authority to call for a Bylaw Enforcement Officer, at any time; they had been designated by CMG with the City of Ottawa and able to call for a Bylaw Enforcement Officer to either ticket or tow unauthorized cars parked in the Visitor's Parking lots. Please be advised that 3 warning notices would first be given to unauthorized vehicles, then a Bylaw Enforcement Officer would be called. Our rules and regulations indicated that 'owners and/or tenants were not allowed to park in the Visitor's Parking lots at any time during the day or night' (regulations #33, #34 and #35). Visitor's parking passes could be obtained from any of the board of directors for overnight parking.
- Our property had never been appraised since its inception and we had it appraised in April of this year; this was necessary to ensure that our insurance coverage for the property was up-to-date in case anything happened to destroy it. The complex was constructed approximately 26 years ago. The site area's approximately 5.24 acres which included the landscaping and paving, fencing, office area as well as all the units and garages. Some highlights from this March 2010 report indicated that the building conditions were in an above average condition and had been maintained and updated as required. An average replacement cost for each unit was given to be \$187,342 and for the whole development, it was for \$14,800,000 (14 million eight hundred thousand dollars). It was noted that the condominium did have earthquake coverage. This report's available on the website.
- Besides updating the *Rules & Regulations*, other documents that were developed by the Board members this year included a *Confidentiality Agreement* for Board members as well as a document outlining the *Roles & Responsibilities* for Board members.
- Concerning the Reserve Fund, in 2009 approximately \$11,000 was spent for the sewer work, some paving repairs and for the repair of a garage roof that had been leaking; all items were for health and safety issues.
- Due to the implementation of the HST on July 1st, this had increased all our costs for contractor fees from July to December. This put us in the deficit of \$10,827 for our 2010 operating budget. To ensure future operating budgets had enough monies to cover the increased costs as well as the fact that there hadn't been any condominium fee increase in the last year; the Board had made a recommendation to increase the condo fees beginning January 1, 2011 to \$230, an increase of 5.5%.

Reminders:

- There has been several complaints regarding smokers who toss their cigarette butts onto the road. To keep our street clean and safe for children, smokers should refrain from throwing their cigarette butts onto the street.

- Pick-up your dog's feces; Regulation # 41 – please respect the Municipal 'poop & scoop' bylaw.
- New clothesline Regulation # 11, Owners/Tenants need permission from the Board for installation; owners need to complete an application form that is available on the website (same process for satellite dishes) or can request an application form from the Property Manager.
- Owners and Tenants **are not** allowed to park in the Visitor's parking lots at any time day or night.
- Owners are responsible for cleaning out their window wells or flooding may result if we get a lot of rain.
- It's advised that *Corkscrew Willow* trees not be planted in your backyards; their roots reach out to 50 feet or more and can cause damage to the house's foundation.
- It's highly recommended that owners take the initiative to reseal their driveways at least every 2 years to prevent erosion; this will help keep our paving costs down.
- For safety reasons, please remember to turn your porch lights on when it gets dark as there are no street lights.
- Please remember to fill out your form regarding the number of smoke detectors installed in your house; this information needs to be collected annually by the City of Ottawa or the Fire Department will go into your house for an inspection.
- Please note that our Property Manager, Stefan Novak, prefers to be contacted by e-mail, if possible; his e-mail address is snovak@condogroup.ca. His voicemail system can only take up to 14 messages.

Questions/comments from owners:

- Ms. Gloria Anderson #497 has a problem with people constantly putting garbage on her front lawn. The Board will make note of this in an attempt to catch who might be doing this.
- Ms. Gloria Anderson #497, the pavers are uneven.
- Mr. Fritz Wichser #501 asked about the repairs to leaking garage roofs. His unit is on the list to be repaired and it will be completed.
- Ms. Nina Muraviova #494 has a basement leak. The Property Manager will investigate this.

8. New Business

- i) Water meters
 - Ms. C. Wu did an informal survey on other similar freehold townhouses regarding how much they pay for water. She found that they paid approximately \$45 – 60 per month. Currently our condominium units pay \$55 per month. Therefore the Board recommends that this is a non-issue and the condominium will stay as status quo.
- ii) Window wells
 - The Board researched the cost to buy and install 25 window well covers. This would be approximately \$400 out of this year's operating budget. The problem was that if owners did not continually remove garbage from the window wells, flooding could occur. The President noted that one flood cost

the condominium \$8,000 and we would like to prevent any future problems. Ms. Janet Buske-Wichser, #501 Sandhamn Private motioned and Ms. Bazinet, #419 Sandhamn Private seconded to agree to purchase the 25 covers at a approximate cost of \$400.00.

CARRIED

iii) Eavestroughs

- Eavestroughs are the owners' responsibility to install. The issue noted was that there continued to be some units that had not purchased/installed or even maintained their eavestroughs and this added to the risk of flooding and/or having the foundation eroded. This would cause problems for everyone because the condo fees would need to be increased or a special assessment applied for this additional avoidable expense. The Property Manager suggested that the condominium take over this responsibility and bill the owners for this expense; this was what had been done at other CCCs that he was responsible for. It was recommended that we should first have him send letters to the individual owners explaining the issue and asking the owners to install eavestroughs, if they did not have them already, and insisted that they maintain their eavestroughs, that is, having them cleaned out annully. If this did not solve the problem, then eavestroughs will be installed by the condominium at the owners expense. The Board of Directors suggested that they will obtain three quotes to install eavestroughs throughout the whole condominium.

Ms. Gloria Anderson, # 497 Sandhamn Private agreed that it would be cheaper if a company were to do this work for everyone.

iv) Increase in Condo Fees

- The Board recommended an increase to \$230 or a 5.5% increase, effective January 1, 2011.

v) Resolutions for changes in Bylaws

- Members to confirm the increase in number of Directors on the Board of Directors.

Unfortunately, this resolution could not be passed as there was not a minimum of 40 owners represented at the meeting.

- Members to confirm the change in terms for members of the Board of Directors.

Unfortunately this resolution could not be passed as we did not reach the percentage of units required to discuss and carry such a motion.

vi) Varia

- Ms. Betty Flack, #453 Sandhamn Private noted that the Ottawa Hospital Exterior Service non-profit organization attached to the Ottawa Hospital cleaned her windows inside and out for \$75.00. She reported that if other

homeowners wanted to join in, the price could possibly be reduced. If you're interested in having this company clean your windows, please contact the Property Manager, Stefan Novak and he would coordinate this with Ms. Flack.

- Ms. Bazinet, #419 Sandhamn Private noted that she was having problems with the lawn maintenance team and hadn't had her backyard cut in about 3 months, and the whole lawn hadn't been cut completely. They also scratched her car. It was noted that they generally come every Monday to cut the grass. Perhaps they weren't coming in to the backyard because either there were items in the backyard or dog feces etc. The Property Manager, Mr. Novak asked that she e-mail the information about the scratch in order that the contractor could cover the damage.
- Mr. Jean Pierre Bazinet, #419 Sandhamn Private asked about the fences and whether there was any intention of fixing the fences, as he was still missing a gate and the fence was wobbly. The President noted that the back fences and gates were the responsibility of the unit owner, but if the contractor had removed the gate they should be responsible to put the gate back on. The Property Manager will follow-up with this issue.

9. Election of Officers

Mr. Guy Gagnon, #432 Sandhamn Private motioned to re-elect all three present Board members, Carol Wu, Arthur Etkin and Mitch Savoie. Ms. Nina Muraviova, # 494 Sandhamn Private seconded this motion.

There were no homeowners opposed to the motion, no abstentions; the motion was therefore carried unanimously.

CARRIED

10. Termination of Meeting

There being no further general discussion and no further business to conduct, Ms. Barbara Corbeil, #478 Sandhamn Private motioned and Ms. Bazinet, #419 Sandhamn Private seconded to terminate the Annual General Meeting of Carleton Condominium Corporation No. 276 at 8:31 p.m.

CARRIED

Heather Clark